

Tentative Rulings for June 29, 2026 Department 3

**To request oral argument, you must notify Judicial Secretary
Molly Frabotta at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department 3 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

For information and instructions on remote appearances via **ZOOM**, visit the court's website at [Riverside Superior Court-Remote Appearances](#)

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,
1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **161 692 7358**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVCO2600654	HOUSE OF HOOKAH LLC VS CITY OF RIVERSIDE	PETITION FOR WRIT OF ADMINISTRATIVE MANDATE AND TRADITIONAL MANDATE

Tentative Ruling: The Court still does not have the demurrer that the City indicated was filed in this matter. This was addressed at the 6/17/2026 hearing and has not been remedied. As such, the Court sets a hearing for July 22, 2026 to discuss the status of the writ petition.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2503348	SORIANO VS THE 0312 RAMONA APTS, L.P.	MOTION TO COMPEL PLAINTIFF JUAN SORIANO'S FURTHER RESPONSES TO SPECIAL INTERROGATORIES, SET ONE

Tentative Ruling:

Plaintiffs Juan Soriano and Esmeralda Bahena Franco are tenants at 685 Deanza Drive, Unit 9D, San Jacinto, California. Plaintiffs allege their apartment was infested with cockroaches and had a defective water heater, bathroom light, and an inoperable air conditioner. Plaintiffs also allege they were discriminated against by the landlord and suffered harassment. (Complaint ¶22.)

The operative Complaint alleges: (1) Violation of California Civil Code §1942.4; (2) Tortious Breach of the Warranty of Habitability; (3) Private Nuisance; (4) Business and Professions Code §17200 et seq.; (5) Negligence; (6) Breach of Covenant of Quiet Enjoyment; (7) Intentional Infliction of Emotional Distress; (8) Negligence Per Se; (9) Violation of Consumer Legal Remedies Act, California Civil Code §1750, et seq.; (10) Unjust Enrichment; (11) Fraud and Deceit in Violation of California Civil Code §1709; and (12) Intentional Influence to Vacate.

Defendant Pro Management Company XIV, Inc. served discovery on Plaintiffs on February 10, 2026. Plaintiff served late responses on March 23, 2026. The parties met and conferred regarding the sufficiency of those responses but were unable to resolve their disagreements.

Defendant Pro Management Company XIV, Inc. makes three motions. First, Defendant Pro Management Company XIV, Inc. moves to compel Plaintiff Juan Soriano to produce further substantive verified responses to Special Interrogatories, Nos. 9, 12, 15, 18, 21, 24, 27, and 30. Defendant also seeks \$2,660 in monetary sanctions.

Second, Defendant moves to compel Plaintiff Juan Soriano to produce further substantive verified responses to Form Interrogatories, Nos. 8.2(a), 8.3, 8.5, 8.6, 8.8, 10.2, 10.3, 12.4, 12.7, 14.1, 14.2, and 17.1. Defendant also seeks \$2,660 in monetary sanctions

Third, Defendant moves to compel Plaintiff Esmeralda Bahena Franco to produce further substantive verified responses to Defendant's Form Interrogatories, Set

One, Nos. 10.2, 10.3, 12.4, 12.7, 14.1, 14.2, and 17.1. Defendant also seeks \$2,660 in monetary sanctions.

Plaintiffs oppose the motions. Plaintiffs argue they have provided code-compliant responses, did not evade discovery, and sanctions are unwarranted.

Note, there is also a motion to compel Plaintiff Esmeralda Bahena Franco to produce further responses to Special Interrogatories, which is set to be heard on June 30, 2026. That motion is addressed in a separate workup.

Analysis

I. Meet and Confer

Under CCP §§ 2031.310(b)(2), 2030.300(b)(1), 2033.290(b)(1) a motion to compel further responses must be accompanied by a meet and confer declaration. The motions are accompanied by the declaration of Attorney Elisabeth Herrmann who sent meet and confer correspondence to opposing counsel. Attorney Herrmann attempted to utilize the court's IDC process and ultimately filed the instant motions to preserve Defendant's rights. This satisfies the meet and confer requirements.

II. MTC Further Responses to Special Interrogatories – Juan Soriano

Defendant Pro Management Company XIV, Inc. moves to compel Plaintiff Juan Soriano to produce further substantive verified responses to Special Interrogatories, Nos. 9, 12, 15, 18, 21, 24, 27, and 30. Plaintiff responded to the discovery after responses were initially due. Failing to respond within the time limit waives most objections to interrogatories, including claims of privilege and work product protection. (CCP §2030.290(a); see *Leach v. Sup. Ct. (Markum)* (1980) 111 Cal.App.3d 902, 905-906.)

The interrogatories at issue asked Plaintiff to identify all documents supporting his contentions concerning the habitability of the apartment, particularly with respect to the water heater, bathroom lighting, ventilation, air conditioning, moisture buildup, and trash accumulation. Defendant also asked Plaintiff to identify all documents supporting his contention he was harassed and discriminated against.

Defendant argues Plaintiff failed to provide clear, code-compliant responses to the discovery. Plaintiff responded as follows: "Responding Party cannot produce the requested documents because the documents in question have never been, or are no longer in the possession, custody, or control of the Responding Party." Defendant argues this response does not identify the good faith efforts, which makes it unresponsive and not code-compliant. In Opposition, Plaintiff argues this response is sufficient and supported by the Code.

A response to an interrogatory stating an "inability to respond" is legally insufficient. If the responding party lacks personal knowledge sufficient to respond, the party may so state, but only after making a reasonable and good faith effort to obtain the information by inquiry to other persons or organizations. (See *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 406.) The responding party must make a reasonable effort to obtain whatever information is sought and if it is

unable to do so, the responding party must specify why the information is unavailable and what efforts the responding party made to obtain it. (See *Deyo v. Kilbourne* (1978) 84 Cal.App.3d 771, 782.) However, there is no duty to provide information that is equally available to the propounding party. (CCP §2030.220(c); see *Bunnell v. Sup.Ct. (California Life Ins. Co.)* (1967) 254 Cal.App.2d 720, 723-724.)

Defendant correctly argues that the interrogatories ask Plaintiff to identify documents that support his positions. Defendant did not ask Plaintiff to produce those documents. Accordingly, Plaintiff's response that he cannot produce the requested documents is simply not responsive. Defendant asks Plaintiff to identify any responsive documents. Plaintiff has not done so. Plaintiffs must provide a response that answers the actual interrogatory at issue. Plaintiff can say no document exists or, if a document does exist, Plaintiff can provide a description of the document and explanation of whether it is still in Plaintiff's possession, custody, or control.

Grant the motion and order Plaintiff to provide supplemental further responses to the challenged interrogatories.

III. MTC Further Responses to Form Interrogatories – Juan Soriano

Defendant moves to compel Plaintiff Juan Soriano to produce further substantive verified responses to Form Interrogatories, Nos. 8.2(a), 8.3, 8.5, 8.6, 8.8, 10.2, 10.3, 12.4, 12.7, 14.1, 14.2, and 17.1. Defendant argues Plaintiff's responses are contradictory, incomplete, and incoherent. In Opposition, Plaintiff argues Defendant cannot challenge a response to an interrogatory simply because Defendant would prefer an answer with more detail.

An answer to an interrogatory must be "as complete and straightforward as the information reasonably available to the responding party permits. If an interrogatory cannot be answered completely, it shall be answered to the extent possible." (CCP §2030.220(a).) Where a question is specific and explicit, an answer that supplies only a portion of the information sought is improper. (See *Deyo v. Kilbourne* (1978) 84 Cal.App.3d 771, 783.)

Form Interrogatory No. 8.2(a): Plaintiff was asked to state the nature of his work, his job title at the time of the incident, and the date his employment began. In response, Plaintiff said he was a "Union Worker," was employed as "Ab Construction Worker," and his work began in November 2024. Defendant argues "Union Worker" is vague and confusing and does not explain the true nature of his work, which would include a description of job duties, tasks, and responsibilities. Defendant is correct Plaintiff's response to subsection (a) of this interrogatory is vague and not complete. A "union worker" could refer to an actor, construction worker, writer, attorney, nurse, doctor, or a number of other professions. Plaintiff needs to provide a more complete answer regarding the nature of his work. Grant.

Form Interrogatory No. 8.3: Plaintiff was asked to state the last date before the incident that he worked for compensation. Plaintiff responded "no." This is confusing and does not answer the interrogatory at all. Grant.

Form Interrogatory No. 8.5: Plaintiff was asked to state the date he returned to work at each place of employment following the incident. Plaintiff responded: "The same week of the incident." Defendant is correct that Plaintiff could provide a more accurate date. If he is unable to do so, he can provide an explanation as to why he cannot provide a more specific date. Grant.

Form Interrogatory No. 8.6: Plaintiff was asked to state the dates he did not work and for which he lost income as a result of the incident. Plaintiff responded "No." This does not answer the interrogatory. Grant.

Form Interrogatory No. 8.8: Plaintiff was asked if he would lose income as a result of the incident and, if so, to provide the amount of lost income, how long he would be out of work, and how his claim for future income was calculated. Plaintiff responded his estimated amount of future loss income is approximately \$3,000, he was unable to work for approximately two (2) weeks, and his claim was calculated on his hourly rate and regular work schedule.

Defendant is correct, the answer to this interrogatory is confusing. Plaintiff appears to be making a claim for lost *future* income but says he was unable to work for two weeks in the *past*. Plaintiff needs to clarify whether he is seeking damages for lost future earnings or lost income from his inability to work previously. Grant.

Form Interrogatory No. 10.2: Plaintiff was asked to list all physical, mental, and emotional disabilities he had immediately before the incident. Plaintiff responded "no." Again, this is vague and does not answer the interrogatory. Grant.

Form Interrogatory No. 10.3: Plaintiff was asked about the injuries he sustained as a result of the incident. Plaintiff simply answered "no." This answers the first question of the interrogatory about whether Plaintiff sustained any injuries as a result of the incident. This is responsive. Deny.

Form Interrogatory No. 12.4: Plaintiff was asked if he or anyone acting on his behalf knew of any photographs, films, or videotapes depicting any place, object, or individual concerning the incident and his injuries. Plaintiff responded with "no." Defendant notes Plaintiff produced photographs in his document production. Defendant asks that Plaintiff amend this answer to be consistent with his other discovery responses. This is a fair request. Grant.

Form Interrogatory No. 12.7: Plaintiff was asked if he or anyone acting on his behalf inspected the scene of the incident. Plaintiff responded "no." However, Defendant notes in response to other requests, Plaintiff lists Daniel Barber, Inspector of Code Enforcement San Jacinto, and states Barber created a report. Defendant asks Plaintiff to clarify this response. Plaintiff should clarify given the contradictory nature of this response. Grant.

Form Interrogatory No. 14.1: Plaintiff was asked if he or anyone acting on his behalf contends any person involved in the incident violated any statute, ordinance, or regulation and that the violation was a legal (proximate) cause of the incident. Plaintiff responded "No." Defendant argues this contradicts Plaintiff's Complaint. This is true, but this responds to the interrogatory and is code-compliant. If Plaintiff wants to now change

his argument and say no one violated a statute or regulation that caused the incident, that is his right to do so. Deny.

Form Interrogatory No. 14.2: Plaintiff was asked if any person was cited or charged with a violation of any statute, ordinance or regulation as a result of the incident. Plaintiff responded “No.” Again, Defendant argues this contradicts the Complaint. While this is true, Plaintiff is allowed to contradict his own Complaint. Deny.

Form Interrogatory No. 17.1: Plaintiff was asked if his response to each request for admission served with the interrogatories an unqualified admission. Plaintiff only provided objections and did not provide responses to the four subcategory interrogatories for the seven requests for admission that he denied. As noted above, Plaintiff waived his right to object to the discovery. As a result, Plaintiff has not provided any response at all to this interrogatory. Grant.

IV. MTC Further Responses to Form Interrogatories – Esmeralda Bahena Franco

Defendant moves to compel Plaintiff Esmeralda Bahena Franco to produce further substantive verified responses to Defendant’s Form Interrogatories, Set One, Nos. 10.2, 10.3, 12.4, 12.7, 14.1, 14.2, and 17.1.

Form Interrogatory No. 10.2: Plaintiff was asked to list all physical, mental, and emotional disabilities he had immediately before the incident. Plaintiff responded “no.” Again, this is vague and does not answer the interrogatory. Grant.

Form Interrogatory No. 10.3: Plaintiff was asked about the injuries she sustained as a result of the incident. Plaintiff simply answered “no.” This answers the first question of the interrogatory about whether Plaintiff sustained any injuries as a result of the incident. This is responsive. Deny.

Form Interrogatory No. 12.4: Plaintiff was asked if she or anyone acting on her behalf knew of any photographs, films, or videotapes depicting any place, object, or individual concerning the incident and her injuries. Plaintiff responded with “no.” Defendant notes Plaintiff produced photographs in her document production. Defendant asks that Plaintiff amend this answer to be consistent with her other discovery responses. This is a fair request. Grant.

Form Interrogatory No. 12.7: Plaintiff was asked if she or anyone acting on her behalf inspected the scene of the incident. Plaintiff responded “no.” However, Defendant notes in response to other requests, Plaintiff lists Daniel Barber, Inspector of Code Enforcement San Jacinto, and states Barber created a report. Defendant asks Plaintiff to clarify this response. Plaintiff should clarify given the contradictory nature of this response. Grant.

Form Interrogatory No. 14.1: Plaintiff was asked if she or anyone acting on her behalf contends any person involved in the incident violated any statute, ordinance, or regulation and that the violation was a legal (proximate) cause of the incident. Plaintiff responded “No.” Defendant argues this contradicts Plaintiff’s Complaint. This is true, but this responds to the interrogatory and is code-compliant. If Plaintiff wants to now change

her argument and say no one violated a statute or regulation that caused the incident, that is her right to do so. Deny.

Form Interrogatory No. 14.2: Plaintiff was asked if any person was cited or charged with a violation of any statute, ordinance or regulation as a result of the incident. Plaintiff responded “No.” Again, Defendant argues this contradicts the Complaint. While this is true, Plaintiff is allowed to contradict her own Complaint. Deny.

Form Interrogatory No. 17.1: Plaintiff was asked if her response to each request for admission served with the interrogatories an unqualified admission. Plaintiff only provided objections and did not provide responses to the four subcategory interrogatories for the seven requests for admission that he denied. As noted above, Plaintiff waived her right to object to the discovery. As a result, Plaintiff has not provided any response at all to this interrogatory. Grant.

V. Sanctions

If a motion to compel is granted and the moving party properly asks for monetary sanctions, the court “shall” order the party to whom the discovery was directed to pay the propounding party’s reasonable expenses, including attorney fees, in enforcing discovery “unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (CCP § 2023.030(a).)

Defendant was successful on all three of its motions and with respect to the vast majority of the discovery issues presented in each motion. There is no apparent justification for Plaintiff’s failure to respond to discovery completely and with more thoughtful and coherent responses. Sanctions are appropriate.

Attorney Herrmann states she spent at least six (6) hours drafting the motion, 0.5 hours meeting and conferring with Plaintiff’s counsel, and expects to spend 3.5 hours in responding to the Opposition and attending the hearing on the motion. At an hourly rate of \$260/hour, Attorney Herrmann asks for \$2,660 in sanctions for each motion. The requested amount is excessive given the overlap between the motions, as the discovery served to Plaintiff Juan Soriano is identical to that served on Plaintiff Esmeralda Bahena Franco and their responses were identical. Furthermore, anticipating 3.5 hours to reply to each Opposition and attend the hearing is excessive.

The Court awards monetary sanctions in an amount of \$1,300 per motion (\$260/hour for 5 hours).

VI. Ruling

Grant the motion to compel Plaintiff Juan Soriano to produce further substantive verified responses to Special Interrogatories Nos. 9, 12, 15, 18, 21, 24, 27, and 30.

Grant the motion to compel Plaintiff Juan Soriano to produce further substantive verified responses to Form Interrogatories Nos. 8.2(a), 8.3, 8.5, 8.6, 8.8, 10.2, 12.4, 12.7, and 17.1. Deny as to interrogatory Nos. 10.3, 14.1, and 14.2.

Grant the motion to compel Plaintiff Esmeralda Bahena Franco to produce further substantive verified responses to Defendant's Form Interrogatories, Set One, Nos. 10.2, 12.4, 12.7, and 17.1. Deny as to interrogatory Nos. 10.3, 14.1, and 14.2.

Award monetary sanctions against Plaintiffs and in favor of Defendant in an amount of \$1,300 per motion (\$260/hour for 5 hours). Plaintiffs are to provide further responses within 20 days.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2503348	SORIANO VS THE 0312 RAMONA APTS, L.P.	MOTION TO COMPEL PLAINTIFF JUAN SORIANO'S FURTHER RESPONSES TO FORMS INTERROGATORIES, SET ONE; REQUEST FOR SANCTIONS

Tentative Ruling:

See above

4.

CASE #	CASE NAME	HEARING NAME
CVRI2503348	SORIANO VS THE 0312 RAMONA APTS, L.P.	MOTION TO COMPEL: FURTHER ANSWERS/RESPONSES TO INTERROGATORIES FORM INTERROGATORIES

Tentative Ruling:

See above

5.

CASE #	CASE NAME	HEARING NAME
CVRI2503999	TAYLOR VS KIA AMERICA, INC	DEMURRER ON COMPLAINT

Tentative Ruling:

The unopposed demurrer is sustained with 30 days leave to amend.

6.

CASE #	CASE NAME	HEARING NAME
CVRI2503999	TAYLOR VS KIA AMERICA, INC	MOTION TO STRIKE COMPLAINT

Tentative Ruling:

In light of the ruling on the demurrer, the motion to strike is moot.